

**VIRGINIA LAND RECORD COVER SHEET
FORM A - COVER SHEET CONTENT**

Instrument Date: 12/13/2017
Instrument Type: DG
Number of Parcels: 5 Number of Pages: 40
☐ City ☒ County

POWHATAN

Tax Exempt? VIRGINIA/FEDERAL LAW

☒ Grantor: 58.1-811(D)

☒ Grantee: 58.1-811(D)

Consideration: \$0.00

Existing Debt: \$0.00

Actual Value/Assumed: \$0.00

PRIOR INSTRUMENT UNDER § 58.1-803(D):

Original Principal: \$0.00

Fair Market Value Increase: \$0.00

Original Book Number: Original Page Number:

Instrument #170004876

(Area Above Reserved For Deed Stamp Only)

Original Instrument Number:

Prior Recording At: ☐ City ☐ County

Percentage In This Jurisdiction: 100%

BUSINESS / NAME

1 ☐ Grantor: HARRISS, CONSTANCE KENNON

2 ☐ Grantor: HARRISS, EXECUTOR, ESTATE OF CHARLES R. KENNON, JR, CONSTANCE KENNON

1 ☒ Grantee: THE CAPITAL REGION LAND CONSERVANCY, INC.

☐ Grantee:

GRANTEE ADDRESS

Name: THE CAPITAL REGION LAND CONSERVANCY, INC.

Address: P.O. BOX 17306

City: RICHMOND

Book Number:

Page Number:

State: VA Zip Code: 23226

Instrument Number:

Parcel Identification Number (PIN): 020-2J

Tax Map Number: 020-2J

Short Property Description:

Current Property Address:

City: POWHATAN

State: VA Zip Code: 23139

Instrument Prepared By: MATTHEW W. LIGHT, ESQ.

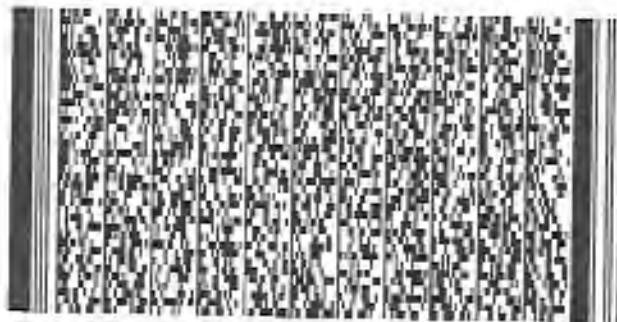
Recording Paid By: BOTKINROSE, PLC

Recording Returned To: BOTKINROSE, PLC

Address: 3190 PEOPLES DRIVE

City: HARRISONBURG

State: VA Zip Code: 22801



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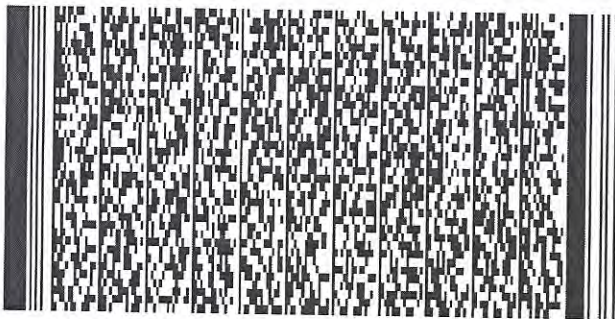
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Prior Recording At: ☐ City ☐ County

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1 ☒ Grantee: THE CAPITAL REGION LAND CONSERVANCY, INC.

☐ Grantee:

GRANTEE ADDRESS

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City: RICHMOND

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Short Property Description:

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Instrument Prepared By: MATTHEW W. LIGHT, ESQ.

Recording Paid By: BOTKINROSE, PLC

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Instrument #170004876

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VIRGINIA LAND RECORD COVER SHEET
FORM B – ADDITIONAL GRANTORS/GRANTEES

Instrument Date: 12/13/2017

Instrument Type: DG

Number of Parcels: 5 Number of Pages: 40

☐ City ☒ County
POWHATAN

GRANTOR BUSINESS / NAME

(Area Above Reserved For Deed Stamp Only)

3 ☐ Grantor: HARRISS, TRUSTEE, CONSTANCE'S TRUST, CONSTANCE KENNON

4 ☐ Grantor: HARRISS, TRUSTEE, CONSTANCE'S TRUST, CONSTANCE KENNON

5 ☐ Grantor: HARRISS, OSCAR HOOKS

☐ Grantor:

☐ Grantor:

☐ Grantor:

☐ Grantor:

☐ Grantor:

GRANTEE BUSINESS / NAME

☐ Grantee:

☐ Grantee:

☐ Grantee:

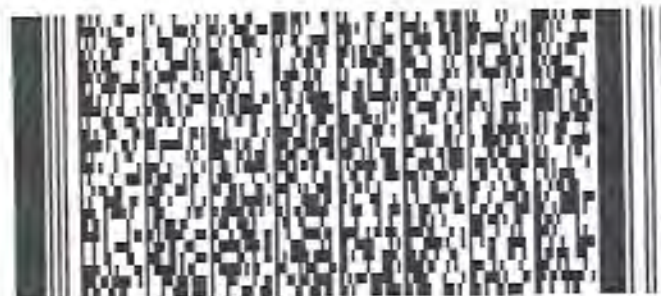
☐ Grantee:

☐ Grantee:

☐ Grantee:

☐ Grantee:

☐ Grantee:



VIRGINIA LAND RECORD COVER SHEET

FORM C - ADDITIONAL PARCELS

Instrument Date: 12/13/2017
Instrument Type: DG
Number of Parcels: 5 Number of Pages: 40
☐ City ☒ County

POWHATAN

PARCELS IDENTIFICATION OR TAX MAP

Prior Recording At: ☐ City ☐ County

Percentage In This Jurisdiction: 100%
Book Number: Page Number:
Instrument Number:

Parcel Identification Number (PIN): 020-2E

Tax Map Number: 020-2E

Short Property Description:

Current Property Address:

City: POWHATAN

State: VA Zip Code: 23139

Prior Recording At: ☐ City ☐ County

Percentage In This Jurisdiction: 100%
Book Number: Page Number:
Instrument Number:

Parcel Identification Number (PIN): 020-2D

Tax Map Number: 020-2D

Short Property Description:

Current Property Address:

City: POWHATAN

State: VA Zip Code: 23139



VIRGINIA LAND RECORD COVER SHEET

FORM C - ADDITIONAL PARCELS

Instrument Date: 12/13/2017
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Number of Parcels: 5 Number of Pages: 40
☐ City ☒ County

POWHATAN

PARCELS IDENTIFICATION OR TAX MAP

Prior Recording At: ☐ City ☐ County

Percentage In This Jurisdiction: 100%

Book Number: Page Number:

Instrument Number:

Parcel Identification Number (PIN): 031-1B

Tax Map Number: 031-1B

Short Property Description:

Current Property Address:

City: POWHATAN

State: VA Zip Code: 23139

Prior Recording At: ☐ City ☐ County

Percentage In This Jurisdiction: 100%

Book Number: Page Number:

Instrument Number:

Parcel Identification Number (PIN): 020-2

Tax Map Number: 020-2

Short Property Description:

Current Property Address:

City: POWHATAN

State: VA Zip Code: 23139

(Area Above Reserved For Deed Stamp Only)



NOTE TO TITLE EXAMINERS: This conservation easement contains restrictions on permitted uses and activities on the property described below, which run with the land and are applicable to the property in perpetuity.

Prepared by:

Matthew W. Light, Esquire (VSB # 47797)
BotkinRose, PLC
3190 Peoples Drive
Harrisonburg, Virginia 22801

Return to:

Capital Region Land Conservancy
P.O. Box 17306
Richmond, VA 23226

POWHATAN TAX MAP NOS. 020-2, 020-2D, 020-2I, 020-2J, 31-1B

Exempted from recordation tax
under the Code of Virginia (1950), as amended,
Section 58.1-811 (D)

THIS DEED OF GIFT OF EASEMENT (this "Easement"), made this 13th day of December, 2017, among **CONSTANCE KENNON HARRISS**, a married woman, individually; **CONSTANCE KENNON HARRISS, EXECUTOR** of the **ESTATE OF CHARLES R. KENNON, JR., DECEASED**; **CONSTANCE KENNON HARRISS, TRUSTEE**, trustee of **CONSTANCE'S TRUST UNDER THE WILL OF CHARLES R. KENNON, JR., DECEASED**; and **CONSTANCE KENNON HARRISS, TRUSTEE**, trustee of **CONSTANCE'S TRUST UNDER THE WILL OF MARY L. KENNON, DECEASED**; (collectively, whether singular or plural, "Grantor"); and **OSCAR HOOKS HARRISS**, individually ("Additional Grantor"), index as an additional grantor, and **THE CAPITAL REGION LAND CONSERVANCY, INC.**, a Virginia non-profit corporation, whose address is P.O. Box 17306, Richmond, VA 23226 ("CRLC"), to be indexed as Grantee (the designations "Grantor" and "Grantee" refer to Grantor and Grantee and their respective successors and assigns), witnesseth:

RECITALS:

R-1 WHEREAS, Grantor is the owner in fee simple of real property situated in Powhatan County, Virginia, containing in the aggregate 145.22 acres, more or less, as further described in **Exhibit A** (the "Property"), and desires to give, grant, and convey to Grantee a perpetual conservation easement over the Property as herein set forth;

R-2 WHEREAS, Grantee is a nonstock, not-for-profit corporation formed under the laws of the Commonwealth of Virginia, constituting a public charity not a private foundation, exempt from federal income taxation under Section 501(c)(3) of the Internal Revenue Code, and is a

"qualified organization" and an "eligible donee" under Section 170(h)(3) of the Internal Revenue Code (references to the Internal Revenue Code in this Easement shall be to the United States Internal Revenue Code of 1986, as amended, and the applicable regulations and rulings issued thereunder, or the corresponding provisions of any subsequent federal tax laws and regulations (the "IRC") and Treasury Regulation 1.170A-14(c)(1)); Grantee is a qualified "holder" under Section 10.1-1009, et seq. of the Virginia Conservation Easement Act (defined below), and is willing to accept a perpetual conservation easement over the Property as herein set forth. The Grantee is willing to accept a perpetual conservation and open-space Easement on and over the Property as set forth herein, has had a principal office in Virginia for more than five years, and has the resources to enforce the restrictions of the Easement and a commitment to protect the Conservation Values (as defined below) of the Property and the Conservation Purposes (as defined below) of the Easement;

R-3 WHEREAS, Chapter 720 of the Acts of 1988, codified in Chapter 10.1, Title 10.1, Sections 10.1-1009 through 10.1-1016 of the Code of Virginia of 1950, as amended (the "Virginia Conservation Easement Act"), provides for the conveyance of a conservation easement to a charitable corporation declared exempt from taxation pursuant to 26 U.S.C. § 501(c)(3), when the primary purposes or powers of such corporation include "retaining or protecting the natural or open-space values of real property, assuring the availability of real property for agricultural, forestal, recreational, or open-space use, protecting natural resources, maintaining or enhancing air or water quality, or preserving the historical, architectural or archaeological aspects of real property";

R-4 WHEREAS, pursuant to Section 10.1-1009 of the Virginia Conservation Easement Act, the purposes of this Easement (as defined below in Section I) include retaining and protecting natural resource values of the Property, and the limitation on division, residential construction, and commercial and industrial uses contained in Section III ensures that the Property will remain perpetually available for agriculture, livestock production, forestry, recreation, or open-space use, all as more particularly set forth below.

R-5 WHEREAS, as required under Section 10.1-1010,1 of the Virginia Conservation Easement Act, the limitations and obligations created by this Easement conform in all respects to the Powhatan County Comprehensive Plan adopted on July 12, 2010, and currently in effect.

R-6 WHEREAS, this Easement is intended to constitute (i) a "qualified conservation contribution" as defined in IRC Section 170(h)(1) and as more particularly explained below, and (ii) a qualifying "interest in land" under the Virginia Land Conservation Incentives Act of 1999 (Section 58.1-510 *et seq.* of the Code of Virginia (1950), as amended).

R-7 WHEREAS, this Easement is intended to be a grant "exclusively for conservation purposes" under IRC Section 170(h)(1)(C), because it effects (1) the protection of a relatively natural habitat of fish, wildlife, or plants, or similar ecosystem under IRC Section 170(h)(4)(A)(ii); (2) the preservation of open space (including farmland and forest land) where such preservation is (a) for the scenic enjoyment of the general public, or (b) pursuant to a clearly delineated Federal, State, or local governmental conservation policy, and will yield a significant public benefit under IRC Section 170(h)(4)(A)(iii); and (3) the preservation of an

historically important land area or a certified historic structure under IRC Section 170(h)(4)(A)(iv).

R-8 WHEREAS, this Easement constitutes a restriction granted in perpetuity on the use that may be made of the Property and is in furtherance of and pursuant to the clearly delineated governmental conservation policies set forth below:

(i) Federal natural and cultural resource protection policies as set forth in:

a. The National Historic Preservation Act, 54 U.S.C. §§ 300101 *et seq.*, which, among other things, established the National Register of Historic Places. The manor house on the Property, Norwood, is an individual structure listed on the National Register of Historic Places.

(ii) Land conservation policies of the Commonwealth of Virginia as set forth in:

a. Section I of Article XI of the Constitution of Virginia, which states that it is the Commonwealth's policy to protect its atmosphere, lands and waters from pollution, impairment, or destruction, for the benefit, enjoyment, and general welfare of the people of the Commonwealth;

b. The Virginia Conservation Easement Act cited above;

c. The Virginia Land Conservation Incentives Act, Chapter 3 of Title 58.1, Sections 58.1-510 through 58.1-513 of the Code of Virginia cited above, which supplements existing land conservation programs to further encourage the preservation and sustainability of the Commonwealth's unique natural resources, wildlife habitats, open spaces and forest resources;

d. Virginia's Real Property Tax Act, Chapter 32, of Title 58.1, Sections 58.1-3230 through 58.1-3244 of the Code of Virginia, which authorizes special use-value tax assessments for real estate devoted to agricultural, forestal, horticultural and open-space use, as applicable;

e. The Virginia Agricultural and Forestal Districts Act, Chapter 43 of Title 15.2, Sections 15.2-4300 through 15.2-4314 of the Code of Virginia, which encourages the conservation, protection, development and improvement of agricultural and forestal lands for the production of food and other agricultural and forestal products and as valued natural and ecological resources which provide essential open spaces for clean air sheds, watershed protection, and wildlife habitat, as well as for aesthetic purposes and as an economic and environmental resource of major importance;

f. The Chesapeake Bay Preservation Act, Chapter 21 of Title 10.1, §§ 10.1-2100 through 10.1-2115 of the Code of Virginia, which provides in part that "[h]ealthy state and local economies and a healthy Chesapeake Bay are integrally related; balanced economic development and water quality protection are not mutually exclusive," and the improper development of

certain lands within Chesapeake Bay Preservation Areas “may result in substantial damage to the water quality of the Chesapeake Bay and its tributaries”;

g. Chapter 22, Title 10.1 of the Code of Virginia of 1950, as amended, which was enacted to support the preservation and protection of the Commonwealth of Virginia's significant historic, architectural, archaeological, and cultural resources, and charges the Board of Historic Resources to designate as historic landmarks to be listed in the Virginia Landmarks Register such buildings, structures, districts, and sites which it determines to have local, statewide, or national significance; the Property having been so designated; and

h. Governor McAuliffe's goal to identify, conserve, and protect at least 1,000 Virginia Treasures by the end of his term. Virginia Treasures include “Virginia's most important ecological, cultural, scenic and recreational assets as well as its special lands.”

(iii) Land use policies of Powhatan County as delineated in:

a. its comprehensive plan adopted on July 12, 2010 to which plan the restrictions set forth in this Easement conform and which contains the following:

1. The Comprehensive Plan designates the Property's future land use as “Rural Preservation”. The Comprehensive Plan states that “[t]he rural preservation areas will be rural in character, with preserved natural, cultural, and historic resources, including farms, agribusiness and tourism, permanently preserved open spaces, permanent easement properties, hillsides, hilltops, floodplains, wooded and forested areas, historic landscapes, landmarks and corridors.” (Page 64). The donation of this Easement will promote the uses described as appropriate for a “Rural Preservation” area.

2. Moreover, in a “Rural Preservation” area, the Comprehensive Plan states that “[w]hen possible, open spaces should be preserved through conservation easements, conservation subdivisions and easements, or donation of land to the county... Stream corridors, woodlands, landmarks, historic sites, notable viewsheds, and other valuable natural or cultural resources should be maintained as part of the dedicated open space... Homesteads, historic sites, landmarks and other historic resources should be protected...” (Page 66). The donation of this Easement will further these policies.

3. The Comprehensive Plan has a stated objective to “Preserve open land and green space”; to accomplish this goal, it is official Powhatan County policy to “encourage conservation easements”. (Page 48).

4. The Comprehensive Plan has a goal to preserve and protect Powhatan County's historic resources (Page 20). The Comprehensive Plan specifically lists the manor house on the Property, Norwood, as one of those historic resources (Page 54).

5. The Comprehensive Plan states that “Residential subdivisions that modify or impair the view corridor along Route 711/ Huguenot Trail from Route 288 west to

Route 522 are discouraged.” (Page 66). The Property lies in the area in which residential subdivisions are discouraged under the Comprehensive Plan.

6. The Comprehensive Plan indicates an intent to explore the possibility of tapping water from the James River as a municipal water source (Page 36). Because the Property abuts the James River, as described below, the preservation of the Property helps to maintain water quality in the James River and its viability as a municipal water source.

R-9 WHEREAS, the Property fronts on the James River for approximately 1,500 feet, and contributes to the views enjoyed by the public therefrom.

R-10 WHEREAS, the portion of the James River abutting the Property is listed as “potentially eligible” for state Scenic River designation under the plans prepared by the Virginia Department of Conservation and Recreation.

R-11 WHEREAS portions of the James River downstream from the Property have been recognized as Virginia Scenic Rivers with noteworthy scenic and ecological qualities under Virginia Code § 10.1-419, and the preservation of the Property will help to maintain water quality along downstream stretches of the James River.

R-12 WHEREAS, the James River is within the Chesapeake Bay watershed, and the protections set forth herein contribute to the goals of the Chesapeake Bay Preservation Act Sections 10.1-2100 through 10.1-2106 of the Code of Virginia (1950), as amended, and support the land conservation goals of the interstate Chesapeake Bay Program and the Federal Executive Order 13508 (5/19/09), the strategy of which is to permanently protect two million acres in the Bay watershed by 2025.

R-13 WHEREAS, further with respect to the Chesapeake Bay watershed, this Easement contributes to the “Goals and Outcomes” of the 2014 Chesapeake Watershed Agreement, to which Governor McAuliffe affirmed the Commonwealth’s commitment on June 16, 2014, as a member of the Chesapeake Executive Council, making Virginia a partner in the agreement among six states, the District of Columbia, the Chesapeake Bay Commission, and seven federal agencies. The limitation on development of the Property by the restrictions set forth herein helps achieve the following goals contained in such agreement:

- Land Conservation Goal: By 2025, protect an additional two million acres of lands throughout the watershed . . . and reduce the rate of conversion of agricultural lands, forests, and wetlands as well as the rate of changing landscapes from more natural lands that soak up pollutants to those that are paved-over, hardscaped or otherwise impervious.
- Water Quality Goal: Reduce pollutants to achieve the water quality necessary to support the aquatic living resources of the bay and its tributaries and protect human health.
- Vital Habitats Goal: Continually improve stream health and function throughout the watershed . . . restore and sustain naturally reproducing brook trout populations in the Chesapeake headwater streams . . . Restore 900 miles per year of riparian forest buffer

and conserve existing buffers until at least 70 percent of the riparian areas throughout the watershed are forested.

R-14 WHEREAS, the U. S. Environmental Protection Agency has stated that "Construction activities disturb soil and may release sediment and other pollutants to local streams. EPA estimates that conversion of land produces 40 million tons per year of new sediment during construction. States have identified sediment as the leading cause of impairment to America's rivers." (Growth and Water Resources EPA 842-F-02-008, June 2002). Preventing intensive development of the Property hereunder helps retain topsoil and protects water quality.

R-15 WHEREAS, the Property consists of the Norwood Plantation and the historic manor house of Norwood (the "Manor House"), which was built in the late eighteenth century and was considerably enlarged and remodeled in 1835. The Norwood Plantation is one of the principal historic plantations of the upper James River region and is distinguished by its stately red brick Manor House, which blends eighteenth- and nineteenth- century architectural styles in what the Virginia Historic Landmarks Commission has referred to as an "interesting and harmonious way".

R-16 WHEREAS, the Manor House contains high-quality eighteenth- and nineteenth- century brickwork and a number of significant and historic architectural features, including: (a) elaborate provincial Adam-style mantels; (b) an Adam-style frontispiece on the south entrance dating from 1835; (c) a curving stair on the north side, with a round handrail and slender square walnut balusters; and (d) bookshelves on either side of the parlor mantel with natural-finished muntins, rails, and stiles, and Gothic arches.

R-17 WHEREAS, the south front of the house is visible from State Route 711, offering the public the opportunity to enjoy the beauty of the exterior of the Manor House from the public road.

R-18 WHEREAS, Beverley Randolph acquired the Manor House and some of the surrounding property in 1832. In 1839 Beverley Randolph died and left the Manor House to his son Charles, who died in 1840 and left the Manor House to his sister Nancy. Nancy married Lieutenant William H. Kennon of the U.S. Navy. The Grantor of this Easement is the great-great grandchild of Lieutenant Kennon and Nancy; thus, the Manor House has been in the family of the Grantor since 1832.

R-19 WHEREAS, the Property contains approximately 110.28 acres of Prime Farmland Soils and approximately 21.92 acres of Soils of Statewide Importance, as classified by the Natural Resources Conservation Service of the United States Department of Agriculture, and protection of the Property from intensive development hereunder will help preserve these productive soils for agricultural production.

R-20 WHEREAS, the scenic, historic, agricultural, and publicly significant open-space values of the Property described above are further described in the "Baseline Documentation Report" provided for in Section V. Such values are collectively referred to in this Easement as the "Conservation Values." The Conservation Values are of importance to the Grantor, the people of

Powhatan County, the people of the Commonwealth of Virginia, and the people of the United States.

R-21 WHEREAS, the Grantor affirms that the Property has not been dedicated as open space within, or as part of, a residential subdivision or any other type of residential or commercial development, or dedicated as open space in, or as part of, any real estate development plan, or dedicated for the purpose of fulfilling density requirements to obtain approvals for zoning, subdivision, site plan, or building permits, and this Easement is not being granted as part of or in connection with any residential or commercial development of the Property or any other real property.

R-22 WHEREAS, this Easement will yield significant public benefit as set forth in these recitals and in Section I.

R-23 WHEREAS, Grantor and Grantee desire to protect in perpetuity the Conservation Values by restricting the use of the Property as set forth in Section III.

R-24 WHEREAS, Grantee has determined that the restrictions set forth in Section III will preserve and protect in perpetuity the Conservation Values and will limit use of the Property to those uses consistent with, and not adversely affecting, the Conservation Values and the governmental conservation policies furthered by this Easement.

NOW, THEREFORE, in consideration of the foregoing recitals, incorporated herein and made a part hereof, and in consideration of the mutual covenants herein and their acceptance by Grantee, Grantor does hereby give, grant and convey to Grantee for the public purposes set forth in Section I below a conservation easement in gross over, and the right in perpetuity to restrict the use of, the Property, in **Exhibit A** attached hereto and made a part hereof, which consists of 145.22 acres, more or less, located in Huguenot District, Powhatan County, Virginia, fronting on State Route 711.

The Property is shown as Tax Map Nos. 020-2, 020-2D, 020-2E, 020-2J, and 31-1B among the land records of Powhatan County, Virginia. **Even though the Property consists of more than one parcel for real estate tax or any other purpose and if it may have been acquired previously as separate parcels, it shall be considered one parcel for purposes of this Easement, and the restrictions and covenants of this Easement shall apply to the Property as a whole.**

SECTION I – PURPOSES

The purposes of this Easement (the “Conservation Purposes”) are to preserve and protect the Conservation Values of the Property in perpetuity by imposing the restrictions on the use of the Property set forth in Section III and providing for their enforcement in Section IV. The Conservation Values of the Property are described below, are documented in the Baseline Documentation Report described in Section V below and include the Property’s Conservation Values, including scenic, natural, and historic values.

This Easement helps CRLC fulfill its mission to conserve and protect the natural or historic land and water resources of Virginia's Capital Region for the benefit of current and future generations.

Pursuant to the Virginia Land Conservation Foundation's Conservation Value Review Criteria the further purpose of this Easement is preservation of land for historic preservation, watershed preservation, and preservation of scenic open space.

Grantor covenants that no acts or uses are currently being conducted or will be conducted on the Property which are: (i) inconsistent with the Conservation Purposes of the donation; or (ii) consistent with the Conservation Purposes of the donation, but are destructive of other significant conservation interests unless such acts or uses are necessary for the protection of the conservation interests that are the subject of the donation.

SECTION II - DEFINITIONS

For purposes of this Easement, the following terms shall have the meaning given to them below. Additional definitions are sometimes expressly provided in the body of this Easement. Where a term used in this Easement is not expressly defined herein, it shall be defined according to the law governing the interpretation of contracts as applicable in the Commonwealth of Virginia.

1. The terms "currently" or "existing," and variations thereof, shall mean existing or current at the time of the recordation of this Easement.
2. The terms "day" or "days" shall mean business days, not calendar days.
3. The term "footprint" shall mean the area occupied by a building or other structure, measured from the outside of the walls of any building, or the outside edges of the foundation of any other structure or, if there is no foundation or four (4) walls, then measured from the outside edges of the roof of a structure.
4. The term "Grantee" shall mean the Capital Region Land Conservancy and its successors and/or assigns in title to this Easement.
5. The term "Grantors" shall mean Grantors and Grantors' successors and assigns in title to the Property or any portion thereof or interest therein.
6. The term "impervious surface" shall mean a surface composed of any material that significantly impedes or prevents natural infiltration of water into soil. Impervious surfaces include, but are not limited to, roofs, buildings, streets, parking areas, and any concrete, asphalt, or compacted gravel surface, unless Grantor can show natural infiltration of water through such surfaces subject to Grantee approval.
7. The term "paragraph" shall refer to the referenced paragraph or subparagraph, and any and all of the subparagraphs of a paragraph, if any, unless otherwise specifically stated.

8. The term "reserved" shall mean a use of the Property that is expressly reserved by Grantor as a right under the terms of this Easement.

SECTION III – RESTRICTIONS

Restrictions are hereby imposed on the use of the Property pursuant to the public policies set forth above. The acts that Grantor covenants to do and not to do upon the Property, and the restrictions that Grantee is hereby entitled to enforce, are and shall be as follows:

1. DIVISION.

- (a) **Separate conveyance of any portion of the Property or division of the Property is prohibited.**
- (b) The parties acknowledge that the Property (or a portion of the Property) may be acquired by a public body for a public use project ("Public Use Project"), including a Public Road Project (defined below), under the use of eminent domain or the threat of eminent domain, if allowed by the Virginia Conservation Easement Act. Such public use acquisition shall not be considered a division or a subdivision of the property and shall not be prohibited by these Restrictions; provided that the Public Use Project, including the planning and design thereof, includes all reasonable and necessary actions to minimize impacts to the Property or the Conservation Values as practicable.
- (c) Boundary line adjustments with adjoining parcels of land that protect or enhance the Conservation Purposes are permitted only in the event that Grantee provides its prior review and written approval, which review and approval shall take into consideration the impact on the proposed boundary line adjustment on the Conservation Values of the Property. Provided, however, that no such adjustment shall remove any portion of the Property from the restrictions of this Easement or otherwise diminish the Conservation Values protected under this Easement.
- (d) The acquisition of any portion of the Property by a public body for the purpose of conducting a public road improvement project ("Public Road Project") shall not be considered a division or subdivision of the Property, and neither the acquisition of such a portion of the Property nor the use of the portion of the Property so acquired shall be prohibited by the Restrictions contained in this Easement.

2. BUILDINGS, STRUCTURES, ROADS, AND UTILITIES.

- (a) No buildings, structures, roads or utilities, other than the following, are permitted on the Property. Such buildings and structures are subject to subparagraph 2(c) **Siting of buildings and structures** below.

(i) **Dwellings and non-residential outbuildings and structures:**

(1) The existing Manor House, which currently has a footprint of 3,614 square feet and contains 6,124 square feet of above-ground enclosed living area. The Manor House shall not be expanded to occupy a footprint greater than the existing footprint, or to increase the amount of above-ground enclosed living area above the existing square footage.

(2) The two existing dwellings, dependencies or outbuildings, consisting of the historic "kitchen" and the historic "farm office" (the "Dependencies"), which may be expanded; provided, however, that the aggregate footprint of the two Dependencies shall not exceed 3,500 square feet. In addition, the height of any addition to a Dependency shall not exceed the height of the Dependency's existing structure.

(3) Grantor shall give Grantee 30 days' written notice before beginning enlargement of a Dependency on the Property.

(ii) **Farm buildings or structures:** Farm buildings or structures, as follows:

(1) The existing three brick barn buildings, which may be expanded or replaced; provided, however, that the aggregate footprint of all such buildings shall not exceed 8,500 square feet;

(2) The existing horse stable (with an existing footprint of 5,527 square feet) and run-in shed (with an existing footprint of 275 square feet), each of which may be replaced, but the footprint of any such replacement shall not be larger than the footprint of the building replaced; and

(3) An additional storage shed (the "New Shed"), which shall not have a footprint larger than 300 square feet.

(4) Grantor shall give Grantee 30 days' written notice before beginning construction or enlargement of any permitted farm building or structure. Any permitted expansion of a permitted farm building or structure shall be subject to prior written approval of Grantee, which approval shall be limited to the impact of the size, height, and siting of the proposed expansion on the Conservation Values of the Property.

(iii) **Roads:** Private roads to serve permitted buildings or structures; and roads with permeable surfaces for permitted uses and activities, such as farming or forestry; private roads or driveways and access easements over same to serve adjacent properties, provided that such roads or driveways have prior written approval of Grantee, which approval shall take into

consideration the impact of the roads or driveways on the Conservation Values of the Property; and

- (iv) **Utilities:** Public or private utilities to serve permitted dwellings, buildings, structures, or activities on the Property. Public or private utilities to be constructed in whole or in part to serve other properties shall not be constructed on, under, or over the Property unless Grantee determines that the construction and maintenance of such utilities will not impair the Conservation Values of the Property and gives its prior written approval for such construction and maintenance. Approval or disapproval of such construction and maintenance shall take into consideration the visibility and any other adverse impact of such utilities on the Conservation Values of the Property. Grantor reserves its separate rights to approve such public or private utilities; and
 - (v) **Alternative energy structures:** Alternative energy structures used to harness natural renewable energy sources, such as sunlight, wind, or biomass, and scaled to provide electrical energy or pump water for permitted dwellings, other buildings, structures, and activities on the Property, which limitation shall not be deemed to prohibit the sale of excess power generated incidentally in the operation of such structures and associated equipment including, but not limited to, solar panels, wind turbines, and micro-hydro installations; and
 - (vi) **Small-scale miscellaneous buildings or structures:** Small-scale miscellaneous buildings and structures, the existence of which is consistent with the Conservation Purposes of this Easement and which will not impair the Conservation Values (as defined in Section I above and elsewhere in this Easement) protected herein, such as hunting stands, wildlife observation structures, fences, and boardwalks, structures for crossing streams or wetlands or portions of docks or piers (all subject to the limitations set forth in Section III, Paragraph 5).
- (b) Grantor shall have the right to construct any buildings, structures, roads, and utilities permitted in Section III, Paragraph 2(a) above and to repair, maintain, renovate, expand, and replace any permitted dwellings, other buildings, structures, roads, and utilities on the Property, within the limitations set forth in this Easement. Grantor shall give Grantee 30 days' written notice before beginning ground clearing for construction or enlargement of any structure permitted under Section III Paragraph 2(a) on the Property.
 - (c) **Siting of Buildings and Structures.** To protect the viewshed from State Route 711 of the historic Manor House on the Property, no buildings or structures, including but not limited to a replacement of an existing building or structure, shall be constructed within, and no existing building or structure shall be expanded into, the no-build area shown as the "Protected Viewshed" on the sketch attached hereto as **Exhibit B** and made part hereof. Notwithstanding the

immediately preceding sentence, the portion of the Manor House currently located within the Protected Viewshed may be maintained, repaired and replaced within the Protected Viewshed, subject to the provisions of Section III, Paragraph 2(a)(1) and Section III, Paragraph 2(c). No trees, shrubbery or plants shall be planted along Route 711 within the Protected Viewshed, or other structures placed within the Protected Viewshed, in such a way as to interfere with the viewshed allowing the driving public to view the Manor House from State Route 711. (See Section III, Paragraph 5 for further restrictions on improvements in the riparian protection zone(s).)

- (d) **Collective Footprint Restriction.** The collective footprint of all buildings and structures on the Property shall not exceed 0.5% of the total area of the Property, provided that if Grantor can demonstrate that an increase in the collective footprint would result in increased protection of the Conservation Values of the Property, Grantee may approve such increase. For the purpose of this paragraph the collective footprint is the ground area measured in square feet of the buildings and structures set forth in Section III, Paragraph 2(a)(i) through (ii), and (iv) through (vi) above and all other impervious surfaces, but excluding linear surfaces, such as, roads and driveways, walls, fences, and boardwalks.
- (c) **Additional Restrictions for Historic Protection of Manor House and Dependencies.** Neither the Manor House nor the Dependencies shall be demolished or removed without the prior written approval of Grantee. Grantee's approval to demolish or remove one of these historic structures shall only be granted upon a finding by a State Historical Preservation Officer that the building's structural and historic integrity have been irremediably and significantly compromised by causes beyond Grantor's reasonable control to such an extent that, in the opinion of the State Historical Preservation Officer, the building's historic or structural integrity is irremediably compromised and the Property no longer eligible for the Virginia Landmarks Register. In addition, however, that the party proposing such demolition or removal shall obtain a report certified by a structural engineer or professional architectural historian or Historical Architect who meets the national Park Service's Professional Qualification Standards as to whether the above criteria are satisfied. Nothing herein shall obligate Grantor to reconstruct the building or return it to its condition prior to such calamity; provided, however, Grantor shall have the right under such circumstances to build a replacement structure in a location that does not impair the Property's historic and archaeological resources or Conservation Values subject to Grantee's prior written approval, and in consultation with a State Historic Preservation Officer. In the case of the Manor House, such replacement structure shall not have a footprint larger than the existing footprint, or an aggregate square footage of above-ground enclosed living area, larger than the existing square footage of above-ground enclosed living area. In the case of Dependencies, the footprint of all such replacement structures, when added to the footprint of any remaining Dependency, shall not exceed 3,500 square feet in the aggregate. In addition, in the event that patently obvious repairs need to be made to preserve the structural integrity of the Manor House or a Dependency but the

Grantor either cannot or will not make them, then Grantee or Grantee's designee shall have the right (but not the obligation) to make such repairs.

3. **INDUSTRIAL AND COMMERCIAL ACTIVITIES ON THE PROPERTY.**

(a) Industrial or commercial activities on the Property are limited to the following:

- (i) Agriculture (including livestock production), equine activities, or forestry;
- (ii) Processing or sale of farm or forest products produced or partially produced on the Property in buildings permitted in Section III Paragraph 2(a);
- (iii) Small-scale incidental commercial or industrial operations compatible with activities set forth in (i) above that Grantee approves in writing as being consistent with the Conservation Purposes;
- (iv) Activities, other than those already permitted in (i) above, that can be, and in fact are, conducted within permitted buildings without material alteration to their external appearance;
- (v) The sale of excess power generated incidentally in the operation of approved alternative energy structures and associated equipment as provided in Section III, Paragraph 2(a)(v);
- (vi) Activities to restore or enhance wetlands or streams or restore, enhance, or develop other ecosystem functions on the Property including, but not limited to, stream bank restoration, wetland and stream mitigation, biological carbon sequestration and biodiversity mitigation, provided that such activities are not in conflict or inconsistent with the Conservation Purposes of or the Restrictions set forth in this Easement and that prior written approval for same shall have been obtained from Grantee. Grantee is not responsible for monitoring any such activities and has no obligation to enforce the provisions of any permit(s), restriction(s), or easement(s) therefor. Subject to Grantee approval, Grantor is free to participate in same in Grantor's discretion and to retain any remuneration derived therefrom; and
- (vii) Outdoor activities or events ("Activities") that do not permanently alter the physical appearance of the Property and that do not impair the Conservation Values of the Property herein protected.

(b) Natural resource-based educational, scientific, religious, or recreational activities are permitted on the Property, provided that they are consistent with the Conservation Purposes of this Easement and do not impair the Conservation Values protected herein. Recreational activities may include use of all or a portion

of the Property as a park for passive recreational activities, such as hiking, photography, bird watching, and nature study.

4. **MANAGEMENT OF FOREST.** BMPs, as defined by the Virginia Department of Forestry, shall be used to control erosion and protect water quality when any material timber harvest or land-clearing activity is undertaken. A pre-harvest plan shall be submitted to CRLC for approval no later than 30 days before beginning any material timber harvest, which approval shall take into consideration whether or not the pre-harvest plan is consistent with the Conservation Purposes and terms of this Easement. The pre-harvest plan shall describe the BMPs to be used in sufficient detail to ensure that water quality will be protected. See paragraph 5 below for additional restrictions on timbering within certain riparian protection zones.

The following activities do not constitute material timber harvesting or land clearing and do not require the use of BMPs or a pre-harvest plan: the cutting, clearing, or removal of trees (i) on less than 0.5 acres of the Property at any one time, (ii) for the construction of permitted roads, trails, utilities, buildings, structures, or ponds, (iii) for firewood for domestic use, (iv) which are invasive species, (v) which pose a threat to the health or safety of persons, property, or livestock, (vi) which are dead, diseased, or dying, or (vii) for other permitted uses on the Property, except timber harvesting or land clearing.

5. **RIPARIAN PROTECTION ZONE(S).** To protect water quality and natural habitat, riparian protection zones (RPZs) shall be maintained on the Property. Such zones are made up of a 100-foot riparian buffer along the edge of the James River on the Property, as measured from the top of the bank of the James River, and a 35 foot riparian buffer along both sides of any perennial stream (if any at all) that may exist on the Property, as measured from the top of the banks of any such perennial stream. The RPZs are shown on **Exhibit C** attached hereto and made a part hereof.

(a) Within an RPZ there shall be:

- (i) no buildings or other substantial structures constructed;
- (ii) no new paved roads or paving of existing roads without Grantee's approval;
- (iii) no storage of manure, fertilizers, chemicals, machinery or equipment;
- (iv) no removal of trees, except:
 - (1) removal of invasive species,
 - (2) removal of dead or diseased trees,
 - (3) removal of trees posing a threat to human or livestock health or safety;

- (4) minimal removal of trees for the purpose of maintaining existing roads.
- (5) minimal removal of trees for creation of small wildlife plots, and
- (6) minimal removal of trees for construction and maintenance of new permitted roads, stream crossings, dams, and any other structures permitted in subparagraph (ii) below; and
- (v) no plowing, cultivation, filling, dumping, or other earth-disturbing activity, except as may be reasonably necessary for the activities set forth in Section III Paragraph 5(b) below.
- (vi) In addition, livestock shall be excluded from all RPZs except (a) for brief periods of flash grazing, (b) during times of drought or other emergencies, (c) for stream crossings or (d) for watering at limited access points. Livestock access for drought or other emergencies, or the establishment of a water access point is subject to Grantee notification and approval.

(b) Permitted within a RPZ are:

- (i) erosion control or restoration, enhancement, or development of ecosystem functions on the Property as permitted and limited under Section III, Paragraph 3 (a)(vi) above;
- (ii) fencing along or within the RPZ;
- (iii) construction and maintenance of stream crossings (including improvements over the RPZ to access crossings) for pedestrians, livestock and vehicles, which crossings minimize obstruction of water flow;
- (iv) creation and maintenance of trails and roads without hard surfaces, and maintenance of existing and new permitted trails and roads;
- (v) creation and maintenance of natural habitat and small wildlife plots;
- (vi) planting of trees, shrubs, grasses, or other vegetation; and
- (vii) clearing, grading and dam construction to create ponds (but not storm water retention or detention ponds to serve other properties);
- (viii) construction and maintenance of portions of shoreline stabilization structures;
- (ix) portions of piers or docks for recreational or aquaculture purposes with access thereto.

- (c) Subsequent to the recordation of this Easement the James River or a perennial stream may meander or change course naturally, or as a result of the restoration, enhancement, or development of ecosystem functions on the Property as permitted and limited under Section III, Paragraph 3 (a)(vi) above. In such event, the RPZ shall remain the same width, but move relative to the movement of the James River or perennial stream. In such event, any buildings or structures that were outside of the original RPZ and are determined to be within the new RPZ shall not be considered in violation of these restrictions and may be maintained and replaced at such locations, but not enlarged.

6. GRADING, BLASTING, FILLING AND MINING.

- (a) Grading, blasting, filling, or earth removal shall not materially alter the topography of the Property except (i) for clearing, grading, and dam construction to create ponds (but not storm water retention or detention ponds to serve other properties), (ii) for restoration, enhancement, or development of ecosystem functions on the Property as permitted and limited under Section III, Paragraph 3 (a)(vi) above, (iii) for erosion and sediment control pursuant to an erosion and sediment control plan, or (iv) as required in the construction of permitted buildings, structures, roads, and utilities. Grantee may require appropriate sediment and erosion control practices to be undertaken for buildings, structures, roads, or utilities that require Grantee's approval in Section III Paragraph 2(a) above, as a condition of such approval.
- (b) Grading, blasting, filling, or earth removal in excess of one acre for the purposes set forth in subparagraphs (a) above require 30 days' prior notice to Grantee. Generally accepted agricultural activities, including the conversion of forest land into farmland, shall not constitute a material alteration of the topography. Surface mining on the Property and subsurface mining from the surface of the Property are prohibited. Dredging on or from the Property is prohibited, except for maintenance of any ponds on the Property.

- 7. ACCUMULATION OF TRASH.** Accumulation or dumping of trash, refuse, junk or toxic materials is not permitted on the Property. This restriction shall not prevent generally accepted agricultural or wildlife management practices, such as creation of brush piles, composting, or the storage of farm machinery, organic matter, agricultural products, or agricultural byproducts on the Property.
- 8. SIGNS.** No billboards or other signs may be displayed on the Property, except for signs that relate to the Property or to permitted activities (including commercial activities) thereon. Temporary political signs are allowed. No sign visible from outside the Property shall exceed thirty-two square feet in size.

SECTION IV – ENFORCEMENT

- 1. RIGHT OF INSPECTION.** Representatives of Grantee may enter the Property from time to time for purposes of inspection (including photographic documentation of the

condition of the Property) and enforcement of the terms of this Easement after permission from or reasonable notice (in accord with the provisions of Section VI Paragraph 11) to Grantor or Grantor's representative, provided, however, that in the event that Grantee determines, in its reasonable discretion, that an emergency threatening any of the Conservation Values exists, Grantee or its agents may enter the Property without notice to prevent, terminate or mitigate a potential violation of this Easement with notice to Grantor or Grantor's representative being given at the earliest practicable time thereafter.

2. **ENFORCEMENT.** Grantee, in accepting this Easement, commits to protecting the Conservation Purposes of the Easement and has the resources necessary to enforce the restrictions set forth herein. Grantee has the right, but not the obligation, to bring a judicial proceeding to enforce the restrictions, which right specifically includes the right (i) to require restoration of the Property to its condition at the time of the conveyance or to require restoration of the Property to its condition prior to a violation hereof, provided that such prior condition was in compliance with the restrictions of and consistent with the purpose of this Easement; (ii) to recover any damages arising from non-compliance; (iii) to compel Grantor to disgorge to Grantee any proceeds received in activities undertaken in violation of the restrictions set forth herein; (iv) to require Grantor to replant or pay for the replanting of trees on the Property in the event that Grantor harvests timber in violation of any restrictions set forth above; (v) to enjoin non-compliance by temporary or permanent injunction; and (vi) to pursue any other appropriate remedy in equity or law. If the court determines that Grantor failed to comply with this Easement, Grantor shall reimburse Grantee for any reasonable costs of enforcement, including costs of restoration, court costs, expert-witness costs, and attorney's fees, in addition to any other payments ordered by the court. Grantee's delay shall not waive or forfeit its right to take such action as may be necessary to ensure compliance with this Easement, and Grantor hereby waives any defense of waiver, estoppel or laches with respect to any failure to act by Grantee. Notwithstanding any other provision of this Easement, Grantor shall not be responsible or liable for any damage to the Property or change in the condition of the Property (i) caused by fire, flood, storm, Act of God, governmental act, or other cause outside of Grantor's control or (ii) resulting from prudent action taken by Grantor to avoid, abate, prevent, or mitigate such damage to or changes in the condition of the Property from such causes.

Nothing in this Easement shall create any right in the public or any third party to maintain any judicial proceeding against Grantor or Grantee, and neither Grantor nor Grantee intend, by the conveyance and acceptance of this Easement, to create any form of trust, including a charitable trust.

SECTION V – DOCUMENTATION

Grantor has made available to Grantee, prior to conveyance of this Easement, documentation establishing the condition of the Property at the time of the recordation of this Easement, such documentation to be known as the Baseline Documentation Report. The Baseline Documentation Report shall be kept in the permanent files of Grantee, and may be used to determine compliance with and enforcement of the terms of this

Easement. However, the parties are not precluded from using other relevant evidence or information to assist in that determination. The parties hereby acknowledge that the Baseline Documentation Report contained in the files of the Grantee is an accurate representation of the Property; was received by Grantor and Grantee prior to recordation of this Easement; and contains a statement signed by Grantor and a representative of Grantee as required by Treasury Regulation 1.170A-14(g)(5)(i).

SECTION VI – GENERAL PROVISIONS

1. **DURATION.** This Easement shall be perpetual. It is an easement in gross that runs with the land as an incorporeal interest in the Property. The covenants, terms, conditions, and restrictions contained in this Easement are binding upon, and inure to the benefit of, the parties hereto and their successors and assigns, and shall continue as a servitude running in perpetuity with the Property. The rights and obligations of an owner of the Property under this Easement terminate upon proper transfer of such owner's interest in the Property, except that liability for acts or omissions occurring prior to transfer shall survive transfer.
2. **NO PUBLIC ACCESS AND GRANTOR'S RETENTION OF USE.** Although this Easement will benefit the public as described above, nothing herein shall be construed to convey to the public a right of access to, or use of the Property. Subject to the terms hereof, Grantor retains the exclusive right to such access and use including, but not limited to, the right to hunt, fish, or trap on the Property.
3. **TITLE.** Grantor covenants and warrants that Grantor has good fee simple title to the Property (including the mineral rights located under the surface of the Property), that Grantor has all right and authority to grant and convey this Easement, and that the Property is free and clear of all encumbrances (other than restrictions, covenants, conditions, and utility and access easements of record), including, but not limited to, any leases, option contracts, mortgage liens, deeds of trust liens, or other liens not subordinated to this Easement, no consent of any third party is required for Grantor to enter into this Easement, each person and/or entity signing on behalf of Grantor is authorized to do so, and, if Grantor is an entity, that Grantor is duly organized, legally existing and in good standing under the laws of its state of formation and/or all beneficiaries' consents have been obtained to enter into this Easement.

In that portions of the Property are presently held in trust, the donation of this Easement has been authorized by a decree of the Powhatan County Circuit Court entered October 19, 2017, in civil action no. CL17000617, which decree is attached hereto as **Exhibit D** and made part hereof; all beneficiaries of such trusts having consented to the donation of this Easement pursuant to Virginia Code § 64.2-108.

4. **ACCEPTANCE.** Grantee accepts this conveyance as authorized by the Virginia Conservation Easement Act, Virginia Code Section 10.1-1009 *et seq.* and is evidenced by the signature of the President of its Board of Directors.

5. **CONTROL OF THE PROPERTY.** Nothing in this Conservation Easement shall be construed as giving rise to any right or ability in the Grantee to exercise physical or managerial control over the day-to-day operations of the Property or any of the Grantor's activities on the Property, or otherwise to "participate in management" of the Property, within the meaning of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980, as amended, or similar federal, state, or local laws.

6. **EXTINGUISHMENT OF DEVELOPMENT RIGHTS.** Grantor hereby grants to Grantee all of the development rights pertaining to the Property, except for those development rights expressly reserved by Grantor herein. Development rights shall be deemed to include, but not be limited to, all development rights and development potential that are now or hereafter allocated to, implied, reserved or inherent in the Property or any portion thereof, including, but not limited to (i) all subdivision and development density rights and potential and (ii) the right to use any of the acreage of the Property in any acreage calculation having the effect of creating, or contributing to, additional development on or off the Property, whether such rights exist now or in the future under federal, state or local law, or otherwise.

Grantor unconditionally and irrevocably relinquishes the right to transfer such development rights to any other property adjacent or otherwise, or to use them for the purposes of calculating permissible lot yield, density, and development potential etc., of the Property or any other property.

The Parties agree that all such development rights are hereby terminated and extinguished in perpetuity.

As an elaboration, but not a limitation, of the foregoing, for purposes of this Paragraph 6, the Property shall be considered to be non-existent for purposes of all development rights and/or development potential, or calculations pertaining thereto, of any and every nature, except as expressly reserved by Grantor in this Easement.

7. **RELATION TO GOVERNMENTAL LAND USE REGULATIONS.** The restrictions imposed by the terms of this Easement are independent of any and all governmental regulations that apply to the use of the Property, including the land development regulations of Powhatan County, Virginia. This Easement does not permit any use of the Property that is otherwise prohibited by federal, state, or local law or regulation. The relationship of this Easement and any such regulations is such that, although the terms of this Easement and such regulations apply simultaneously to the Property, on a case-by-case basis, the more restrictive regulation or Easement restriction will govern the use of the Property.
8. **INTERACTION WITH OTHER LAWS.** This Easement does not permit any use of the Property that is otherwise prohibited by federal, state, or local law or regulation. Neither the Property, nor any portion of it, has been or shall be proffered or dedicated as open space within, or as part of, a residential subdivision or any other type of residential or commercial development; proffered or dedicated as open space in, or as part of, any

real estate development plan; or proffered or dedicated for the purpose of fulfilling density requirements to obtain approvals for zoning, subdivision, site plan, or building permits. No development rights that have been encumbered or extinguished by this Easement shall be transferred to any other property pursuant to a transferable development rights scheme, cluster development arrangement, or otherwise.

9. **CONSTRUCTION.** Pursuant to the public policy of the Commonwealth of Virginia favoring land conservation, any general rule of construction to the contrary notwithstanding (including without limitation any rule favoring the free use of any land that is subject to an easement or restrictive covenant) this Easement shall be liberally construed in favor of the grant to effect the purposes of the Easement and the policy and purposes of Grantee. If any provision of this Easement is found to be ambiguous, that interpretation that most effectively advances the Conservation Purposes shall be favored over any other interpretation. Notwithstanding the foregoing, lawful acts or uses consistent with the purpose of and not expressly prohibited by this Easement are permitted on the Property. Grantor and Grantee intend that the grant of this Easement qualify as a "qualified conservation contribution" as that term is defined in IRC Section 170(h)(1) and Treasury Regulation Section 1.170A-14, and the restrictions and other provisions of this instrument shall be construed and applied in a manner that will not prevent this Easement from being a qualified conservation contribution.

Neither Grantor nor Grantee shall be deemed to be the draftsman of this Easement or any part thereof, each having had the benefit of counsel of their own choosing in negotiating its terms.

10. **REFERENCE TO EASEMENT IN SUBSEQUENT DEEDS.** This Easement shall be referenced by deed book and page number, instrument number or other appropriate reference in any deed or other instrument conveying any interest in the Property. Failure of Grantor to comply with this requirement shall not impair the validity of the Easement or limit its enforceability in any way, or the validity of any conveyance of the Property.
11. **NOTICE TO GRANTEE AND GRANTOR.** For the purpose of giving notices hereunder the current address of Grantee is Capital Region Land Conservancy P.O. Box 17306 Richmond, VA 23226, and any notice to Grantor shall be given to the recipient at the address at which the real estate tax bill is mailed for the Property or portion thereof that is the subject of the notice and which is currently 1470 Huguenot Trail, Powhatan, Virginia 23139. To the extent a portion of the Property is held in a trust of which Constance K. Harriss is a trustee, notice to Constance K. Harriss shall be a sufficient notice to all the Trustees.

Grantor shall notify Grantee in writing at or prior to closing on any inter vivos transfer, other than a deed of trust or mortgage, of all or any part of the Property.

(i) Any notices, demands or other communications required or permitted to be given by the terms of this Easement shall be given in writing and shall be delivered (i) in person (such delivery to be evidenced by a signed receipt); (ii) by certified mail, postage prepaid;

return receipt requested; (iii) by U.S. Express Mail or commercial overnight courier; or (iv) by regular U.S. Mail.

Such notices shall be deemed to have been "given" (i) when actually delivered, in the case of personal delivery; (ii) when delivered as confirmed by an official return receipt if sent by certified mail; (iii) within two (2) business days of deposit with a courier in the case of U.S. Express Mail, or commercial overnight courier; or (iv) when actually received, in the case of U.S. Mail. Such notices shall be sent to the addresses of the parties set forth above, or such other address as a party may, pursuant to the notice provisions of this Paragraph 11, direct.

Notice of change of address shall be effective only when done in accordance with this Paragraph 11.

(ii) All notices required by this Easement shall be in writing, and shall provide sufficient information, in addition to any information required by other provisions of this Easement, to allow, in the case of notice to Grantee, Grantee to determine whether the proposal is consistent with the Conservation Purposes. In the case of notice to Grantor, the notice shall inform Grantor of the purpose of the notice, and the provision(s) of this Easement with respect to which the notice has been sent.

Failure of Grantor or Grantee to comply with these requirements shall not impair the validity of the Easement or limit its enforceability in any way.

12. **TAX MATTERS.** The parties hereto agree and understand that any value of this Easement claimed for tax purposes as a charitable gift must be fully and accurately substantiated by an appraisal from a qualified appraiser as defined in Treasury Regulation Section 1.170A-13(c)(5), and that the appraisal is subject to review and audit by all appropriate tax authorities. Grantee makes no express or implied warranties that any tax benefits will be available to Grantor from conveyance of this Easement, that any such tax benefits might be transferable, or that there will be any market for any tax benefits that might be transferable. The conveyance and perpetual nature of this Easement is not contingent upon the availability of tax benefits for this conveyance. By its execution hereof, Grantee acknowledges and confirms receipt of the Easement and further acknowledges that Grantee has not provided any goods or services to Grantor in consideration of the grant of the Easement.
13. **NO MERGER.** Grantor and Grantee agree that in the event that Grantee acquires a fee interest in the Property, this Easement shall not merge into the fee interest, but shall survive the deed and continue to encumber the Property.
14. **ASSIGNMENT BY GRANTEE.** Grantee may not transfer or convey this Easement unless Grantee conditions such transfer or conveyance on the requirement that (i) all Restrictions and Conservation Purposes set forth in this Easement are to be continued in perpetuity and (ii) the transferee qualifies at the time of the transfer as an eligible donee as defined in Section 170(h)(3) of the IRC as amended and the applicable Treasury

Regulations and meets the statutory requirements of The Virginia Conservation Easement Act, Virginia Code § 10.1-1009 et seq. (as amended), for a holder of a perpetual conservation easement, or the definition of a public body under the Open-Space Land Act, Virginia Code § 10.1-1700 et seq. (as amended).

15. **GRANTEE'S PROPERTY RIGHT.** Grantors agree that the donation of this Easement gives rise to a property right, immediately vested in Grantee, with a fair market value that is equal to the proportionate value that this Easement bears to the value of the Property as a whole at the time of the recordation of this Easement.
16. **EXTINGUISHMENT.** If a subsequent unexpected change in the conditions surrounding the Property makes impossible or impractical the continued use of the Property for the Conservation Purposes, the restrictions of this Easement may only be extinguished by a judicial proceeding. Should an attempt be made to extinguish this Easement in whole or in part, such extinguishment shall be carried out by judicial proceedings in compliance with IRC Section 170(h) and applicable Treasury Regulations. In any sale or exchange of the Property resulting from such an extinguishment, Grantee shall be entitled to a portion of the proceeds at least equal to the proportionate value of this Easement computed as set forth in the preceding paragraph. Such proceeds shall be used by Grantee in a manner consistent with the Conservation Purposes.
17. **AMENDMENT.** Grantee and Grantor may amend this Easement to enhance the protection of the Conservation Values, provided that no amendment shall (i) affect this Easement's perpetual duration, (ii) conflict with or be contrary to or inconsistent with the Conservation Purposes, (iii) reduce the protection of the Conservation Values, (iv) affect the qualification of this Easement as a "qualified conservation contribution" or "interest in land", (v) affect the status of Grantee as a "qualified organization" or "eligible donee", or (vi) create an impermissible private benefit or private inurement in violation of federal tax law. No amendment shall be effective unless documented in a notarized writing executed by Grantee and Grantor (or their successors) and recorded in the Clerk's Office of the Circuit Court of Powhatan County, Virginia.
18. **HAZARDOUS SUBSTANCES OR WASTES - NO CONTROL; WARRANTY; INDEMNITY.** Nothing in this Easement shall be construed as giving rise to any right or ability in the Grantee to exercise physical or management control over the day-to-day operations of the Property, or any of the Grantor's activities on the Property, or otherwise to become operators with respect to the Property within the meaning of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980, as amended ("CERCLA"), or any corresponding Commonwealth of Virginia statute or regulation or local ordinance. Grantor warrants that it has no actual knowledge of a release or threatened release of hazardous substances or wastes on the Property, as such substances and wastes are defined by applicable law, and hereby promises to indemnify Grantees against, and hold Grantees harmless from, any and all loss, cost, claim (without regard to its merit), liability or expense (including reasonable attorneys' fees) arising from or with respect to any release of hazardous substance or waste or violation of environmental laws.

19. **JOINT OWNERSHIP.** If Grantor at any time owns the Property or any portion of or interest therein in joint tenancy, tenancy by the entirety, or tenancy in common, all such tenants shall be jointly and severally liable for all obligations of Grantor set forth herein.
20. **VESTING OF CONSERVATION EASEMENT.** Unless otherwise agreed to in writing between the Grantees, should CRLC, or any of its successors in interest, cease to exist, or no longer qualify as a "qualified organization" under §170(h) of the Internal Revenue Code (or any successor provision then applicable) or should otherwise cease to be eligible to receive this Easement directly under the laws of the Commonwealth of Virginia, its interest in this Easement and all rights of enforcement thereto shall vest in the Virginia Outdoors Foundation, unless the Easement has been assigned prior to cessation to another holder qualified according to the provisions of the laws of the Commonwealth of Virginia and the provisions of Section V, Paragraph 11 above.
21. **SEVERABILITY.** If any provision of this Easement or its application to any person or circumstance is determined by a court of competent jurisdiction to be invalid, the remaining provisions of this Easement shall not be affected thereby.
22. **ENTIRE AGREEMENT.** This Easement, the exhibit(s) attached hereto, and the Baseline Documentation Report, set forth the entire agreement of the parties with respect to this Easement and supersede all prior discussions, negotiations, understandings, or agreements relating to the Easement.
23. **CONTROLLING LAW, VENUE AND JURISDICTION.** The interpretation and performance of this Easement shall be governed by the laws of the Commonwealth of Virginia and the United States and shall be in accord with the provisions of Section VI Paragraph 8.
24. **RECODIFICATION AND AMENDMENT OF STATUTES AND REGULATIONS.** This Easement cites various federal and state statutes and regulations applicable to conservation easements. In the event that such statutes or regulations are re-codified or amended, this Easement will be interpreted and enforced according to the re-codified or amended statutes and regulations most closely corresponding to those cited herein and carrying out the purposes recited herein.
25. **RECORDING.** This Easement shall be recorded in the land records in the Circuit Court Clerk's Office of Powhatan County, Virginia, and Grantor or Grantee may re-record it any time as may be required to preserve their rights under this Easement.
26. **COUNTERPARTS.** This Easement may be executed in one or more counterpart copies, each of which when executed and delivered shall be an original, but all of which shall constitute one and the same Easement. Execution of this Easement at different times and in different places by the parties hereto shall not affect the validity of the Easement.

27. PAYMENT OF COSTS, TAXES OR ASSESSMENTS.

(i) Grantor shall bear all costs of operation, upkeep and maintenance of the Property.

(ii) Grantor shall be responsible for the payment of all real estate taxes or assessments lawfully levied upon the Property and/or upon this Easement and/or upon Grantee as a result of its holding this Easement, and Grantee shall have no obligation, or responsibility, for the payment of such taxes or assessments. Grantee shall have the right to make any payment or to participate in any foreclosure or similar proceeding resulting from any delinquency, as necessary to protect its interest in the Property.

(iii) Grantor shall indemnify Grantee and Grantee's officers, directors, and employees and their heirs, successors and assigns (the "Indemnified Parties") from any liability or expenses incurred by Grantee in connection with the payment of the costs and/or taxes that are the subject of this Paragraph 27.

28. INDEMNIFICATION. The parties acknowledge and agree that Grantee has neither possessory rights in the Property, nor any right or responsibility to control the use of the Property (except to enforce the restrictions on use of the Property provided for in this Easement), nor to maintain, or keep up the Property, and the parties agree that Grantor retains all such rights and control exclusively.

Grantor shall indemnify Grantee, and the Indemnified Parties, from any court awarded damages, together with reasonable attorney's fees and expenses incurred by Grantee and/or the Indemnified Parties, and all attorneys' fees and expenses assessed against Grantee and/or the Indemnified Parties, resulting from any and all of the following:

(i) Personal injury or property damage that occurs on the Property not due to the negligence of Grantee and/or its agents;

(ii) Liability, including, but not limited to, liability under CERCLA, and/or similar local, state or federal laws, relating to cleanup of hazardous substances that were released or in any way deposited on the Property, other than by Grantee and/or its agents.

A party's rights and obligations pursuant to this Easement shall terminate upon transfer of that party's interest in the Easement, or in all of the Property, as the case may be, except that liability for the acts or omissions of such party during the time that such party held an interest in the Property shall survive transfer of any interest in the Property with respect to such party.

29. JOINDER OF CONSORT AND EXECUTOR. Oscar Hooks Harriss, Additional Grantor, husband of the individual Grantor Constance K. Harriss, joins in the execution of this Easement to evidence his consent to the gift of easement herein made and its exclusion from the augmented estate of Constance K. Harriss pursuant to Virginia Code § 64.2-308.9(A)(2) as now written or hereafter amended. Constance K. Harriss, Executor

of the Estate of Charles R. Kennon, Jr., deceased, joins in the execution of this Easement solely to subordinate any rights she may have as Executor to the conditions and restrictions of this Easement.

WITNESS the following signatures and seals: [Counterpart signature pages follow.]

[Counterpart signature page 1 of 5]

GRANTOR:

Constance Kennon Harriss, Executor

CONSTANCE KENNON HARRISS, EXECUTOR of the
Estate of Charles R. Kennon, Jr., deceased

COMMONWEALTH OF VIRGINIA,

CITY/COUNTY OF POWHEATAN, TO WIT:

The foregoing instrument was acknowledged before me this 13 day of DECEMBER
2017 by Constance Kennon Harriss, Executor of the Estate of Charles R. Kennon, Jr., deceased.

Taylor M. Cole
Notary Public

(SEAL)



My commission expires: 3-31-18
Registration No. 7040085

Constance Kennon Harriss
CONSTANCE KENNON HARRISS, individually

COMMONWEALTH OF VIRGINIA,
CITY/COUNTY OF POWhatan, TO WIT:

The foregoing instrument was acknowledged before me this 13 day of DECEMBER 2017, by Constance Kennon Harriss.

[Signature]
Notary Public

(SEAL)



My commission expires: 3-31-18
Registration No. 7040085

Constance Kennon Harriss, Trustee
CONSTANCE KENNON HARRISS, TRUSTEE of
"Constance's Trust" under the will of Charles R. Kennon,
Jr., deceased

COMMONWEALTH OF VIRGINIA,
CITY/COUNTY OF POWhatan, TO WIT:

The foregoing instrument was acknowledged before me this 13 day of DECEMBER 2017, by Constance Kennon Harriss, Trustee of "Constance's Trust" under the will of Charles R. Kennon, Jr., deceased.

[Signature]
Notary Public

(SEAL)



My commission expires: 3-31-18
Registration No. 7040085

Constance Kennon Harriss, Trustee
CONSTANCE KENNON HARRISS, TRUSTEE of
"Constance's Trust" under the will of Mary L. Kennon,
deceased

COMMONWEALTH OF VIRGINIA,
CITY/COUNTY OF Powhatan, TO WIT:

The foregoing instrument was acknowledged before me this 13th day of DECEMBER
2017 by Constance Kennon Harriss, Trustee of "Constance's Trust" under the will of Mary L.
Kennon, deceased.

(SEAL)



[Signature]
Notary Public

My commission expires: 3-31-18
Registration No. 7040085

ADDITIONAL GRANTOR:

Oscar Hooks Harriss
OSCAR HOOKS HARRISS, individually

COMMONWEALTH OF VIRGINIA,
CITY/COUNTY OF POWHEATAN, TO WIT:

The foregoing instrument was acknowledged before me this 13th day of DECEMBER 2017, by Oscar Hooks Harriss.

Taylor M. Cole
Notary Public

(SEAL)



My commission expires: 3-31-18
Registration No. 7040085

GRANTEE:

Accepted:
CAPITAL REGION LAND CONSERVANCY, INC.,
Grantee

By: [Signature]

Its: PROVOST, CLC

COMMONWEALTH OF VIRGINIA,
CITY/COUNTY OF POWHEATAN, TO WIT:

The foregoing instrument was acknowledged before me this 13TH day of DECEMBER 2017 by
DRIAN J. WATSON, known to me to be PRESIDENT of the
Capital Region Land Conservancy, Inc., on behalf of the corporation.

(SEAL)



[Signature]
Notary Public

My commission expires: 3-31-18
Registration No. 7040085

EXHIBIT A

REAL ESTATE DESCRIPTION

All those five certain tracts or parcels of land, situate in Huguenot District, Powhatan County, Virginia, and described as follows:

TRACT ONE: POWHATAN TAX MAP NO. 020-2J (32.30 ACRES)

All that certain tract or parcel of land containing 32.3 acres, more or less, situate on the north side of State Route No. 711, abutting the James River on the south, identified and shown on that certain plat of survey entitled "Plat showing 32.3 acres of land lying on the north line of state route no. 711", made by Woodrow K. Cofer, L.S., dated January 2, 2003, and of record in the Clerk's Office of the Circuit Court of Powhatan County, Virginia (the "Clerk's Office") at Deed Book 508, Page 719.

BEING the same property, a one-half undivided interest in which was conveyed to Constance Kennon Harriss by deed dated November 10, 2014, from Constance Kennon Harriss, Elizabeth Kennon Shuey, and Mary Kennon McDaniel, which deed is of record in the Clerk's Office at Deed Book 859, Page 1508. Such deed incorrectly recites that it conveys a 100% fee simple interest.

AND BEING ALSO the same property, a one-half undivided interest in which was devised to Constance Kennon Harriss, Trustee of "Constance's Trust", under Article II(B)(3) of the last will and testament of Charles R. Kennon, Jr., deceased, which will is of record in the Clerk's Office at Will Book 31, Page 16.

TRACT TWO: POWHATAN TAX MAP NO. 020-2E (24.24 ACRES)

All that certain tract or parcel of land containing 12.12 acres, more or less, abutting the James River on the south, identified as "PARCEL B" and shown on that certain plat of survey entitled "Plat showing 2 parcels of land lying east [sic] of state route no. 711", made by Woodrow K. Cofer, L.S., dated December 7, 1990, and of record with the instrument recorded in the Clerk's Office at Deed Book 231, Page 311.

BEING the same property conveyed to Constance K. Harriss by deed of gift dated January 2, 1991, from Charles R. Kennon, Jr., and Mary L. Kennon, which deed is of record in the Clerk's Office at Deed Book 231, Page 311.

TOGETHER WITH all that certain tract or parcel of land containing 12.12 acres, more or less, abutting the James River on the south, identified as "12.12 +- acres" and shown on that certain plat of survey entitled "Plat showing 12.12 +- acres of land lying north of state route no. 711", made by Woodrow K. Cofer, L.S., dated December 27, 1995, and of record with the instrument recorded in the Clerk's Office at Deed Book 309, Page 285.

BEING the same property, a one-half undivided interest in which was conveyed to Constance K. Harriss by deed of gift dated December 27, 1995, from Charles R. Kennon, Jr., which deed is of record in the Clerk's Office at Deed Book 309, Page 285.

AND BEING ALSO the same property, a one-half undivided interest in which was devised to Constance Kennon Harriss, Elizabeth Kennon Shuey, and Mary Kennon McDaniel, Trustees of "Constance's Trust", under Article III(C)(3) of the last will and testament of Mary L. Kennon, deceased, which will is of record in the Clerk's Office at Will Book 27, Page 759.

TRACT THREE: POWHATAN TAX MAP NO. 020-2D (12.12 ACRES)

All that certain tract or parcel of land containing 12.12 acres, more or less, identified as "PARCEL A" and shown on that certain plat of survey entitled "Plat showing 2 parcels of land lying east [sic] of state route no. 711", made by Woodrow K. Cofer, L.S., dated December 7, 1990, and of record with the instrument recorded in the Clerk's Office at Deed Book 229, Page 138.

BEING the same property conveyed to Constance K. Harriss by deed of gift dated December 19, 1990, from Charles R. Kennon, Jr., and Mary L. Kennon, which deed is of record in the Clerk's Office at Deed Book 229, Page 138.

TRACT FOUR: POWHATAN TAX MAP NO. 031-1B (4.22 ACRES)

All that certain tract or parcel of land containing 4.22 acres, more or less, situate on the south side of State Route No. 711, identified as "4.220 ac. TM No 31 part of Pct. 1" and shown on that certain plat of survey entitled "Plat showing 4.220 acres of land lying on the south line of state route no. 711", made by Woodrow K. Cofer, L.S., dated January 2, 2003, and of record in the Clerk's Office at Deed Book 508, Page 716.

AND BEING ALSO the same property devised to Constance Kennon Harriss under Article II(B)(2) of the last will and testament of Charles R. Kennon, Jr., deceased, which will is of record in the Clerk's Office at Will Book 31, Page 16.

TRACT FIVE: POWHATAN TAX MAP NO. 020-2 (72.34 ACRES)

All that certain tract or parcel of land containing by estimation 72.34 acres, being the remaining portion of a tract of land originally containing 192.8 acres, more or less, designated as parcel No. 2 (Charles R. Kennon, Jr.) on the plat of survey prepared by Woodrow K. Cofer, L.S., dated October 23, 1980, and entitled "Plat of Two (2) Parcels of Land in Huguenot District, Powhatan County, Virginia", a copy of which Plat is recorded in the Clerk's Office in Plat Cabinet D, Slide 14, LESS AND EXCEPT the following parcels, which were previously conveyed out of the original 192.8 acres to arrive at the existing parcel of 72.34 acres:

- A. Tract One above (32.30 acres)
- B. Tract Two above (24.24 acres)
- C. Tract Three above (12.12 acres)

D. All that certain tract or parcel of land, containing 51.8 acres, more or less, presently constituting Powhatan Tax Map No. 020-2A, being the same property conveyed from Charles R. Kennon, Jr., and Mary L. Kennon to Elizabeth Kennon Shuey and Mary Kennon McDaniel by two instruments recorded in the Clerk's Office at Deed Book 217, Page 429, and Deed Book 218, Page 73.

BEING the remaining portion of the property conveyed to Charles R. Kennon, Jr., and Mary L. Kennon, husband and wife, by deed of partition dated May 15, 1981, of record in the Clerk's Office at Deed Book 192, Page 687. The said Charles R. Kennon, Jr., and Mary L. Kennon conveyed such property to themselves as tenants in common by deed dated March 16, 1989, of record in the Clerk's Office at Deed Book 209, Page 409.

The said Mary L. Kennon died testate on October 22, 1994; her will is of record in the Clerk's Office at Will Book 27, Page 759, and under Article III(C)(3) of her will, she devised her one-half interest in Tract Five to Constance Kennon Harriss, Elizabeth Kennon Shuey, and Mary Kennon McDaniel, Trustees of "Constance's Trust" under her will. The original trustee of Constance's Trust under such will was Charles R. Kennon, Jr.; after the death of Charles R. Kennon, Jr., by order of the Powhatan County Circuit Court entered August 1, 2002, in chancery cause no. CH02-73, Constance Kennon Harriss, Elizabeth Kennon Shuey, and Mary Kennon McDaniel became substitute trustees. Only Constance Kennon Harriss qualified as trustee, however, the other appointed trustees have declined in writing to do so.

The said Charles R. Kennon, Jr., died testate on July 8, 2001; his will is of record in the Clerk's Office at Will Book 31, Page 16, and under Article II(B)(3) of his will, he devised his one-half interest in Tract Five to Constance Kennon Harriss, Trustee of "Constance's Trust" under his will.

77°44'30"W

62-12-0-C-4

James River

020-2C

020-2A

020-2E

020-2D

020-2J

020-2F

020-2G

020-2

031-19C

020-1

031-1A

031-1B

031-1

031-1A

Point	Latitude	Longitude
1	37.584622	-77.747521
2	37.583519	-77.746182
3	37.581378	-77.741968
4	37.591224	-77.73514
5	37.59279	-77.73746

Legend

-  Conservation Easement Area (145.22 +/- acres)
-  Individual Parcels

77°44'30"W

Projection: Lambert Conformal Conic
 GCS North America 1983
 Datum: D North America 1983

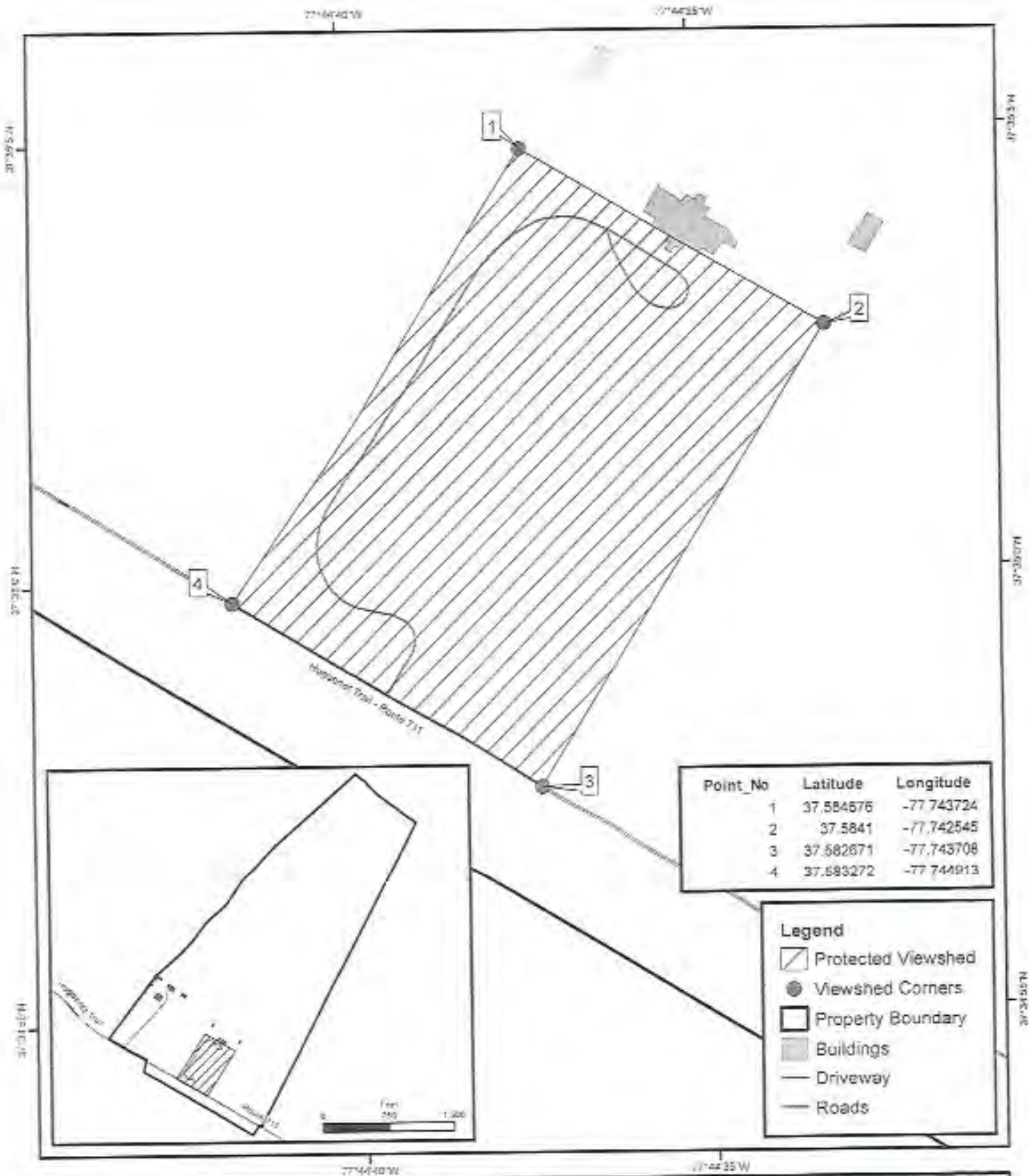
Map created 11/17/2017 by Conservation Patterns.
 Source data provided by VGIN (parcels), CP
 (conservation easement area and corner points). This
 map is for general reference and display purposes only.

Conservation Easement Area

145.22 +/- acres
 Powhatan County

0 300 600
 Feet
 1:7,200





Projection: Lambert Conformal Conic
 GCS North America 1983
 Datum: NAD83

Map created 10/25/2017 by Conservation Partners
 Source data provided by VGIN (roads), CP (property
 boundary, buildings, driveways, viewshed).

This map is for general reference and display
 purposes only.

Exhibit B

Protected Viewshed

Constance K. Harriss
 Powhatan County

0 Feet 150
 1:1,800



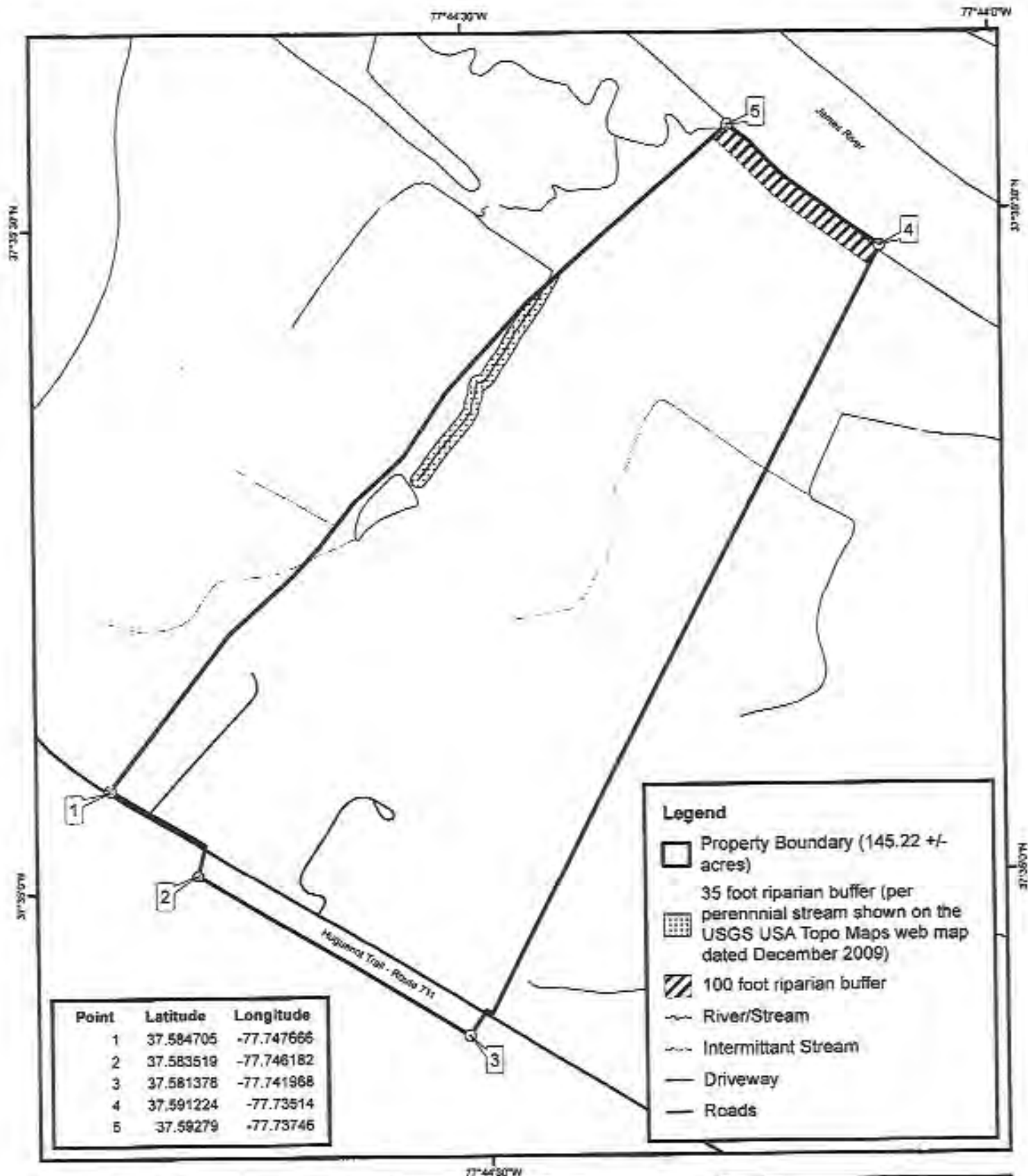


Exhibit C

145.22 +/- acres Powhatan County

0 Feet 300 600
1:7,200





VIRGINIA:

IN THE CIRCUIT COURT OF POWHATAN COUNTY

IN RE:

PETITION OF CONSTANCE K. HARRISS,
ET ALIA, FOR AID AND GUIDANCE
REGARDING DONATION OF CONSERVATION
EASEMENT

Civil Action No. CL17000617-00

FINAL DECREE

THIS CAUSE is before the Court on a verified petition for aid and guidance (the "Petition") filed by Constance K. Harriss, individually ("Constance"); Constance K. Harriss, Trustee under the will of Charles R. Kennon, Jr., deceased ("Charles' Will"); and Constance K. Harriss, Mary K. McDaniel, and Elizabeth K. Shuey, Trustees under the will of Mary L. Kennon, deceased ("Mary's Will") (such parties, collectively, the "Petitioners"). The Petition has been endorsed, under oath, by all the living adult descendants of Charles R. Kennon, Jr., and Mary L. Kennon (such descendants, the "Family Members"). Upon consideration of the verified petition, the Court's correspondence with counsel, and the arguments of counsel, the Court makes the following findings of fact and conclusions of law, and it is hereby

ORDERED AND DECREED

as follows, to wit:

1. The land that is the subject of the Petition (the "Property") is the historic estate of "Norwood", situate in Powhatan County, within the territorial jurisdiction of this Court. The Property consists of the following Powhatan County tax map numbers, and the record owners of the Property are as follows:

<u>Tax Map No.</u>	<u>Owner</u>	<u>Source of Title</u>
020-2 (72.34 acres)	½, Mary's Trust	Art. III(C)(3), Mary's will
	½, Charles' Trust	Art. II (B)(3), Charles' will

020-2D (12.12 acres)	Constance	DB 229/P 138
020-2E (24.24 acres total; western 12.12 acres)	Constance	DB 231/ P 311
020-2E (24.24 acres total; eastern 12.12 acres)	1/2, Constance	DB 309/P 285
	1/2, Mary's Trust	Art. III(C)(3), Mary's will
020-2J (32.30 acres)	1/2, Constance	DB 859/P 1508
	1/2, Charles' Trust	Art. II (B)(3), Charles' will
31-1B (4.22 acres)	Constance	Art. II (B)(2), Charles' will

2. The record owners of the Property are all before the Court as Petitioners.

3. Portions of the Property are held in trust under the wills of Charles R. Kennon, Jr., deceased, and Mary L. Kennon, deceased (such trusts, collectively, the "Trusts"). The Family Members are contingent beneficiaries of the Trusts, either (a) as permissible appointees of Trust corpus on the death of Constance, under the terms of the testamentary powers of appointment contained in the Trusts; or (b) as potential takers in default under such powers of appointment.

4. The Petitioners desire to donate a conservation easement or open-space easement over the Property pursuant to the provisions of Virginia Code 10.1-1009 *et seq.* (the "Conservation Easement"). Because portions of the Property are held in the Trusts, the consent of all the Trusts' beneficiaries "whose interests are affected thereby" is required under Virginia Code § 64.2-108.

5. All the Family Members have consented to the donation of a Conservation Easement on the Property.

6. In addition to the Family Members, there exist now, and may exist in the future, minor contingent beneficiaries of the Trusts ("Minor Contingent Beneficiaries") and unborn contingent beneficiaries of the Trusts ("Unborn Contingent Beneficiaries"), who might also be permissible appointees of Trust corpus if alive at the time of the death of Constance, or who

would be potential takers in default if Constance died without exercising her powers of appointment under the Trusts.

7. All Minor and Unborn Contingent Beneficiaries are, or will be, descendants of Family Members who have endorsed the Petition and given consent to the donation of the Conservation Easement.

8. Virginia Code § 64.2-714, a provision of the Uniform Trust Code, provides a "virtual representation" procedure whereby in the context of a trust certain persons may give consent on behalf of others. Under § 64.2-714(B), "[t]he consent of a person who may represent and bind another person under this chapter is binding on the person represented."

9. Pursuant to Virginia Code §§ 64.2-716 (6) and (7), and absent a conflict of interest,

6. A parent may represent and bind the parent's minor or unborn child if a guardian of the estate or guardian for the child has not been appointed; and

7. If a minor or unborn person is not otherwise represented under this section, a grandparent or more remote ancestor may represent and bind that minor or unborn person.

10. In connection with the Trusts, no conflict of interest exists between the Family Members, on the one hand, and the Minor and Unborn Contingent Beneficiaries, on the other.

11. Under the above-referenced "virtual representation" provisions, the Family Members, who are all parents or more remote ancestors of the Minor and Unborn Contingent Beneficiaries, have given consent to the donation of the Conservation Easement on behalf of the Minor and Unborn Contingent Beneficiaries.

12. Accordingly, all the beneficiaries of the Trusts "whose interests are affected thereby" have given consent to the donation of the Conservation Easement pursuant to the first

sentence of Virginia Code § 64.2-108, and the Petitioners possess the power to donate the Conservation Easement. For the avoidance of doubt, the Court recognizes that the Conservation Easement may include, as determined by the Petitioners, all provisions usual and customary in similar easements, or convenient for the conservation of the Property, including without limitation (a) provisions restricting the division of the Property, and prohibiting its conveyance as separate parcels; (b) provisions restricting development and construction on the Property; (c) provisions restricting the use of the Property; (d) provisions for the protection of watersheds in or affected by the Property; (e) provisions for appropriate forest management; and (f) provisions appropriate to enable the tax benefits described in the Petition.

Pursuant to Rule 1:13, the Court waives the endorsement of the Family Members on this decree, in that they endorsed the original Petition requesting the relief herein granted.

The Clerk is directed to send a certified copy of this Decree to counsel of record for the Petitioners. This is a final decree.

Dated: October 19, 2017 Paul W. Callahan
Judge, Powhatan County Circuit Court

I ASK FOR THIS:



Matthew W. Light, Esquire (VSB # 47797)
BotkinRose, PLC
3190 Peoples Drive
Harrisonburg, Virginia 22801
540-437-0019 (phone)
540-437-0022 (fax)
milight@botkinrose.com

ATTORNEY FOR PETITIONERS

A COPY:
TESTE: TERESA HASH DOBBINS, CLERK
BY: Jenna M. Dobbins
CLERK/DEPUTY CLERK

INSTRUMENT 170004276
RECORDED IN THE CLERK'S OFFICE OF
POWATAN CIRCUIT COURT ON
October 20, 2017 AT 01:14 PM
TERESA H. DOBBINS, CLERK
RECORDED BY: DET